| STANDARD OPERATING PROCEDURE | | | G-4700 | |
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| | SARPY COUNTY SHERIFF'S OFFICE<br>PAPILLION * NEBRASKA<br>GREG LONDON<br>SHERIFF | DATE ISSUED<br>07/20/21 | DATE REVISED<br>**06/04/25** | DATE REVIEWED<br>02/02/25 |
| | | APPROVED:<br>*GREG LONDON* | | |
| CHAPTER TITLE<br>GENERAL | | RESOURCES<br>**CALEA 41.3.8**<br>**N.R.S. 81-1453, 81-1454** | | |
| SUBJECT<br>BODY WORN CAMERAS | | CROSS REFERENCE<br>A-7100 Evidence and Property<br>G-8500 Annual Training and Policy Review | | |

## I. Purpose:

The purpose of this policy is to establish guidelines for the proper use of Body Worn Cameras (BWC); establish procedures for securing evidence obtained on the systems; and establish the procedures for storing and maintaining the data produced by the equipment.

## II. Policy:

It is the policy of the Sarpy County Sheriff's Office to utilize body worn cameras solely for legitimate public safety purposes. BWC use shall be consistent with this policy and the law and shall be used in a professional and ethical manner. All employees using body worn cameras and/or accessing the technology shall be appropriately trained and supervised in its use. Modifications of this policy must be sent to the Nebraska Commission on Law Enforcement and Criminal Justice to comply with N.R.S. 81-1453 as well as meet all criteria of the Commission's model policy as outlined in N.R.S. 81-1454.

## III. Definitions:

**A. EVIDENTIARY VALUE:** For purposes of this policy, evidentiary value shall mean any such recordings that may reasonably be of value as evidence for:

**1.** The prosecution of any criminal, juvenile, or board of mental health matter, including evidence that may implicate or exonerate a person from an offense; or,

**2.** The litigation of any reasonably foreseeable civil matter that may involve the Sarpy County Sheriff's Office and/or Sarpy County as a litigant.

**3.** Internal Investigations, Line Investigations, and/or Incident Reviews.

## IV. Procedures:

### A. BWC Assignment and Training:

**1.** Deputies working Road Patrol shall be assigned and required to utilize a BWC during his or her duty shifts, when BWC's are available.

**2.** Deputies assigned to the Court Services Division shall be issued a BWC and be required to utilize it during his or her duty shift.

**3.** Deputies shall ensure their assigned BWC is checked out through the appropriate software program and functioning properly.

**4.** A Division Commander may require their assigned personnel to utilize a BWC while on-duty.

**5.** Personnel shall use only BWCs issued by the Sheriff's Office.

**6.** Prior to issuance, all deputies assigned BWCs shall be trained in the use of the technology and this policy.

**a)** Initial training is to include:

**(1)** Sheriff's Office policies and applicable laws.
**(2)** Procedures for operating a BWC.
**(3)** Procedures for tagging recorded data captured by a BWC.
**(4)** Procedures for uploading, accessing and reviewing the data.
**(5)** Procedures for documenting and reporting a malfunction.
**(6)** Retention and production requirements.
**(7)** Requirements for BWC positioning.

**b)** Annual training may include:

**(1)** Technology updates
**(2)** Policies and laws
**(3)** Community feedback
**(4)** Liability and legal issues

**c)** Supervisor Training: In addition to initial training, supervisors shall receive training on supervisory responsibilities.

7. BWC equipment is the sole property of the Sheriff's Office but is the responsibility of individual deputies and shall be used with reasonable care to ensure proper functioning. Deputies shall inspect and test the BWC prior to each shift in order to verify proper functioning. BWC shall be returned to the docking station in the deputy work area in clean and working order at the end of each shift. (This shall not apply to deputies who have BWC's assigned solely to them). Equipment malfunctions shall be brought to the attention of the deputy's supervisor as soon as possible, so that a replacement unit may be procured.

8. Deputies shall not edit, alter, erase, duplicate, copy, share, or otherwise distribute in any manner BWC recordings without prior written authorization and approval of Sheriff or his designee.

9. Deputies shall note in their reports when recordings were made during an incident.

10. Deputies shall attempt to transfer the in-car recording data prior to the end of their shift.

11. BWC data containing information that may be of evidentiary value for prosecution in any criminal or civil proceeding shall be safeguarded as evidence pursuant to SOP A-7100 Evidence and Property and shall be submitted prior to the end of the deputies shift.

12. BWC equipment shall be positioned on the deputy based on the manufacturer's recommendations.

13. A quarterly inventory shall be performed on all BWC's. The day shift Road Patrol Commander will designate a deputy to be responsible for completing this inventory. Upon completion of the inventory, it will be sent to Records to be scanned and filed.

14. The Court Services Commander shall assign a deputy to be responsible for completing the inventory for the Court Services BWCs.

**B. Procedures for BWC use:**

1. The BWC should be activated whenever a deputy is responding to a call for service or at the initiation of any other law enforcement encounter with a member of the public.

2. Deputies assigned to the Court Services Division, when practicable, should activate their BWC in the Courthouse when making arrests that are not ordered from a Judge on the bench or during any

incident that might lead to a report, complaint, or arrest. Under no circumstances are the deputies to record court proceedings, unless a disturbance is occurring or directed by a judge.

**3.** Deputies assigned to the Court Services Division shall wear their assigned BWC during transports. When practicable, the deputy should activate the BWC if an incident occurs during the transport that might lead to a complaint, a report, or any use of force.

**4.** If a deputy is facing an immediate threat to his or her safety that makes activating the camera impossible or dangerous, the deputy should activate the camera at the first reasonable opportunity to do so.

**5.** When appropriate, deputies should narrate important facts and observations as they occur.

**6.** Prior to deactivating the recording, the deputy should record a short verbal reason for the deactivation as documentation.

**7.** The BWC should not be deactivated until the encounter has fully concluded and the deputy leaves the scene.

**8.** If a deputy fails to activate the BWC, fails to record the entire contact, or interrupts the recording, the deputy shall document in a written report why a recording was not made, was interrupted, or was terminated.

**9.** Communications should not be muted between deputies and the public; i.e. witnesses, victims, etc. Conversations involving tactics, operations or investigations may be muted between deputies and other law enforcement entities, i.e. County Attorney's Office, supervisors, and other officers.

**10.** If the deputy deems it to be in the best interest of justice, the deputy has the option to deactivate the BWC audio and video during interview situations when a member of the community requests the recording be discontinued. Requests by a member of the community to discontinue recording should be recorded prior to deactivation of the BWC.

**C. Restrictions on using the BWC:**

**1.** BWCs shall only be used in conjunction with official law enforcement duties. The BWC should not be used to record:

**a)** Casual or non-call related conversation between Sheriff's Office employees.

**b)** Encounters with undercover officers or confidential informants.

**c)** When on break or otherwise engaged in personal activities.

**d)** In any location where individuals have a reasonable expectation of privacy, such as a restroom or locker room; unless the activation is for the purpose of official law enforcement activity.

**e)** Any search which includes partial or complete nudity.

**f)** Deputies will only use the BWC in patient care areas of a healthcare facility when the recording is for law enforcement purposes and caution should be used to record only the parties involved in the event being investigated.

**D. Data Review:**

**1.** Recordings may be reviewed in any of the following situations:

**a)** For use when preparing reports, statements, or for court room testimony, unless it is determined to have “Restricted Access” by the Sheriff or authorized designee:

**b)** By a supervisor to investigate and/or defend complaints made against deputies.

**c)** By a supervisor following a critical incident.

**d)** By an investigator who is participating in an official investigation.

**e)** To assess proper functioning recording technology.

**f)** For official training purposes.

**g)** When provided by the Property and Evidence Unit to authorized Sarpy County Attorney personnel for legal proceedings.

**h)** Upon authorization of the Sheriff or authorized designee.

**2.** Deputies only have direct access to view their recordings.

**3.** Members of the public shall not be allowed to review BWC recordings at the scene of the contact.

**4.** Employees who have not received BWC training are prohibited from accessing or distributing BWC data.

**5.** An audit trail exists to track all access to recordings by the video management system.

**6.** No employee will access or obtain data for personal use.

**E. Policy Compliance**

**1.** Road Patrol and Court Services command officers and supervisors shall review a minimum of three recorded events per subordinate each semi-annual period.

**a)** The review is to ensure BWC equipment is functioning properly and is being used in compliance with Sheriff's Office policy.

**b)** The review shall be documented on the Camera Captured Data Review Form.

**2.** The Road Patrol and Court Services Commander or his or her designee shall conduct an annual review of the operational procedures and practices relating to BWC equipment and use to ensure members of this agency follow and adhere to this policy.

**F. Duplication:**

**1.** Recorded video data shall not be duplicated except with the approval of the Sheriff or Command personnel or at the request of the County Attorney's Office.

**2.** Any video data that has been logged into evidence for a pending criminal prosecution shall not be duplicated unless such duplication is approved the County Attorney's Office.

**3.** Only the Sheriff or Sheriff's designee may authorize release of BWC data to the public and/or other law enforcement agencies.

**4.** Supervisors completing internal investigations/reviews are authorized to duplicate recorded videos when necessary to assist in the investigation.

**G. Data Storage and Retention:**

**1.** The Sarpy County Evidence Unit will manage the storage, duplication, and dissemination of recordings. The software shall maintain a chain of custody for each recording.

**2.** All BWC data is the property of the Sarpy County Sheriff's Office, which shall be preserved and retained in accordance with state law and agency evidence protocols. The BWC data, images, video, and metadata captured, recorded, or otherwise produced by the equipment is the sole property of this agency.

**3.** Retention of BWC data shall comply with applicable laws, court orders or litigation holds governing record retention.

**4.** Video data files containing no evidentiary value shall be maintained for 90 days, at which time they will be deleted automatically by the video management system.

**5.** BWC data with evidentiary value shall be retained:

**a)** Until final judgement is entered in a civil or criminal proceeding.

**b)** Until final determination on a complaint or when discipline has finalized; and/or

**c)** Until an investigation has been officially cleared, closed or suspended if the investigation does not result in an arrest or is not prosecuted.

**6.** Complaints

**a)** If a complaint against a deputy is received, the Professional Standards Unit shall have access to all related videos.

**b)** If a complaint incident was recorded, the BWC video shall become evidence to be retained by the assigned investigating deputy and shall be used for any purpose that may serve in an internal investigation including disciplinary action against the deputy.

## H. Policy Review

**1.** The BWC policy shall be reviewed as part of the annual training and policy review (see G-8500 Annual Training and Policy Review).